

Shailesh Kumar Gupta v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 26 June 2020 · Writ-C No. 6530 of 2020 · **Writ dismissed; petitioner relegated to Clause 6.5 of the Supply Code.**

HEADNOTE

A consumer who challenges recovery of electricity dues by disputing the licensee's assessment must pursue the statutory representation under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The High Court will not examine the assessment in writ and will dismiss the petition on the ground of alternative remedy.

FACTUAL SUMMARY

The petitioner, Shailesh Kumar Gupta, filed a writ petition in the Allahabad High Court challenging recovery of electricity dues by the respondent electricity department and disputing the assessment on which the demand was founded. The matter was adjourned more than once; on 27 February 2020 counsel for the Electricity Department stated that no coercive action would be taken till the next date. On 26 June 2020, with counsel for respondent Nos. 3 and 4 present, the petition was taken up for disposal.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

assessment-dispute-alternate-remedy

HOLDING

Where recovery of electricity dues is challenged by disputing the departmental assessment, the consumer's remedy is to approach the competent authority under Clause 6.5 of the Electricity Supply Code, 2005. A writ petition is dismissed on the ground of that alternative remedy. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy Writ challenging recovery of electricity dues on a disputed assessment dismissed because Clause 6.5 is the alternative remedy. ¶ 1

clause-6.5-statutory-remedy-disputed-bill Dispute as to the department's assessment of electricity dues is to be taken to the competent authority under Clause 6.5. ¶ 1

6.5-representation-as-appropriate-remedy Court held the petitioner's remedy is to approach the competent authority under Clause 6.5 of the Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEPARTMENTAL ASSESSMENT AND OF THE ELECTRICITY DUES SOUGHT TO BE RECOVERED

Not examined on merits; petition dismissed solely for alternative remedy under Clause 6.5. ¶ 1